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TAB 2



Board of Education Report

File #: Rep-053-22/23, Version: 1

Approval of Facilities Contracts Actions
December 13, 2022
Procurement Services Division - Facilities Contracts

Action Proposed:

Ratify the Procurement Services Division (PSD) contract actions taken by Facilities Contracts under delegated authority as listed in Attachment "A" including: award of advertised construction contract; approval of change orders; completion of contracts; award of architectural and engineering contracts; award of professional services contract amendments; extra services / amendments for architectural and engineering contracts and approve the proposed contract listed in Attachment B including award of a professional services contract.

Background:

Facilities Contracts staff prepares monthly reports for contract actions necessary for the execution of projects approved by the Board and contained in the FSD Strategic Execution Plan (SEP), and for the maintenance and operation of District facilities in accordance with District policies and Board-delegated authority. As described in the November 12, 2013 Board Report #048-13/14 Informative, detailed information is provided on the Facilities Services website.

Expected Outcomes:

Approval of these items will allow services provided by these contracts to proceed in support of FSD projects, District policies and goals, and the Board-approved FSD-SEP.

Board Options and Consequences:

The Board can approve all actions presented or postpone selected actions pending receipt of additional information. Non-ratification of actions awarded under delegated authority in Attachment "A" will result in the immediate discontinuance of services. While non-ratification may be legally defensible, it will likely result in costly litigation over discontinued payments or if the District attempts to reclaim payments made to a vendor. District costs will likely increase as fewer contractors compete for future procurements

Policy Implications:

This action does not change District policy and conforms to California Education Code section 17604 that permits the Board of Education to delegate authority for Facilities Contracts (Board Report #444-17/18), which the Board exercised on May 08, 2018.

Budget Impact:

The contract actions presented are within the budget authority previously approved by the Board. Unless indicated otherwise, all contract actions are Bond funded.

Student Impact:

The contract actions will help ensure that the students are provided with safe and healthy environments, and up to-date facilities that promote learning

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Equity Impact:

Not applicable

Issues and Analysis:

There are no policy implications on these agreements

Attachments:

Attachment “A” - Ratification of Facilities Contract Actions Awarded Under Delegated Authority

Attachment “B” - Approval of Facilities Contract Actions Not Under Delegated Authority

Informatives:

None

Submitted:

11/16/22

RESPECTFULLY SUBMITTED,



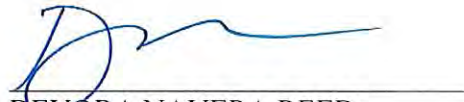
ALBERTO M. CARVALHO
Superintendent

APPROVED BY:



PEDRO SALCIDO
Deputy Superintendent,
Business Services & Operations

REVIEWED BY:



DEVORA NAVERA REED
General Counsel



Approved as to form.

APPROVED:



SUNG YON LEE
Business Manager
Business Services and Operations

REVIEWED BY:



TONY ATIENZA
Director, Budget Services and Financial Planning



Approved as to budget impact statement

APPROVED & PRESENTED BY:



JUDITH REECE
Chief Procurement Officer
Procurement Services Division

REVIEWED BY:



MARK HOVATTER
Chief Facilities Executive



Approved as to facilities impact

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

A. AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

<u>CONTRACTOR</u>	<u>IDENTIFI- CATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
D. John Roser, Inc. (SBE)	2210043 / 4400010917 Item A	<u>Carson HS</u> Board Member: <u>Tanya Ortiz Franklin</u> Ratification of formally competed contract to upgrade the school campus by installing new safety nets and poles at the boys' baseball and girls' softball fields. Due to the height of the existing poles/nets, stray balls from the fields have caused damage to parked vehicles and the conditions pose ongoing potential safety concerns. These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action. Contract Term: 10/26/22 through Division of State Architect (DSA) certification and close-out. Contract Value: \$920,000 Requester: India Griffin, Director Maintenance & Operations Facilities Services Division	Bond Funds (100%)	\$920,000

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

A. AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

<u>CONTRACTOR</u>	<u>IDENTIFI- CATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Prime Axis General Builder, Inc. (SBE)	2310002 / 4400010905 Item B	<u>Hillside ES</u> Board Member: <u>Rocio Rivas</u> Ratification of formally competed contract to provide campus upgrades. Replacement of existing security screens campus-wide, modernization of multi-purpose room, replacement of portable stage, drinking fountain, sound system, paint, and flooring. These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action. Contract Term: 10/25/22 through DSA certification and close-out. Contract Value: \$847,000 Requester: India Griffin, Director Maintenance & Operations Facilities Services Division	Bond Funds (100%)	\$847,000

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

Item C

B. APPROVAL OF CHANGE ORDERS

October 2022 = \$2,904,258

	<u>QUANTITY</u>	<u>AMOUNT</u>
i. New Construction contract change orders that do not individually exceed 10 percent for October 2022 (Average Transaction: \$39,071; Median Transaction: \$14,436)	37	\$1,445,626
ii. New Construction contract credit change orders for October 2022:	3	<\$90,616>
iii. Existing Facilities contract change orders that do not individually exceed 15 percent for October 2022 (Average Transaction: \$12,955; Median Transaction: \$5,240):	131	\$1,697,063
iv. Existing Facilities contract credit change orders for October 2022:	6	<\$147,815>
v. Existing Facilities contract change orders that individually exceed 15 percent (but do not exceed 25 percent) for October 2022, requiring 75 percent approval by the Board:	0	\$0

C. COMPLETION OF CONTRACTS – October 2022

12

\$3,242,329

D. AWARD OF INFORMAL CONTRACTS (Not Exceeding \$99,100)

\$0

	<u>QUANTITY</u>	<u>AMOUNT</u>
A & B Letters for October (Average Transaction: \$0; Median Transaction:\$0)	Not available	\$0

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

H. AWARD OF ARCHITECTURAL AND ENGINEERING CONTRACTS

<u>CONTRACTOR</u>	<u>IDENTIFI- CATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
NAC, Inc., dba NAC Architecture	2220040 / 4400010644 Item D	<u>Venice HS</u> Board Member: <u>Nick Melvoin</u> Ratification of formally competed contract to provide architectural and engineering services. Provide design development, construction document, bid/proposal and award, construction administration and closeout for the property line fence replacement project (BOE #246-15/16) These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action. Contract Term: 10/07/22 through completion Contract Value: \$87,919 Requester: Aaron Bridgewater, Director Asset Management Facilities Services Division	Bond Funds (100%)	\$87,919

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

H. AWARD OF ARCHITECTURAL AND ENGINEERING CONTRACTS

<u>CONTRACTOR</u>	<u>IDENTIFI- CATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Little Diversified Architectural Consulting	2320002 / 4400010920 Item E	<u>7th Street ES</u> Board Member: <u>Tanya Ortiz Franklin</u> Ratification of formally competed contract to provide architectural and engineering services. Provide site investigation, construction document, construction administration and closeout for the barrier removal project (BOE #007-22/23). These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action. Contract Term: 10/26/22 through close-out Contract Value: \$396,790 Requester: Aaron Bridgewater, Director Asset Management Facilities Services Division	Bond Funds (100%)	\$396,790

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

H. AWARD OF ARCHITECTURAL AND ENGINEERING CONTRACTS

<u>CONTRACTOR</u>	<u>IDENTIFI- CATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
PBK Architects, Inc.	2320003 / 4400010838 Item F	<u>Arminta Street ES</u> Board Member: <u>Kelly Gonez</u> Ratification of formally competed contract to provide architectural and engineering services. Provide site investigation, construction document, construction administration and closeout for the barrier removal project (BOE #007-22/23). These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action. Contract Term: 10/24/22 through close-out Contract Value: \$285,260 Requester: Aaron Bridgewater, Director Asset Management Facilities Services Division	Bond Funds (100%)	\$285,260

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

H. AWARD OF ARCHITECTURAL AND ENGINEERING CONTRACTS

<u>CONTRACTOR</u>	<u>IDENTIFI- CATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
dsk LLP, dba dsk Architects (SBE)	2320004 / 4400010669 Item G	<u>Atwater Avenue ES</u> Board Member: <u>Jackie Goldberg</u> Ratification of formally competed contract to provide architectural and engineering services. Provide site investigation, construction document, construction administration and closeout for the barrier removal project (BOE #007-22/23). These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action. Contract Term: 10/20/22 through close-out Contract Value: \$312,137 Requester: Aaron Bridgewater, Director Asset Management Facilities Services Division	Bond Funds (100%)	\$312,137

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

H. AWARD OF ARCHITECTURAL AND ENGINEERING CONTRACTS

<u>CONTRACTOR</u>	<u>IDENTIFI- CATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Richard Berliner Architect, Inc., dba Berliner Architects (SBE)	2320008 / 4400010959 Item H	<u>Districtwide</u> Ratification of formally competed architectural and engineering services contract to update design standards. Review and update design standards for outdoor learning environments. These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action. Contract Term: 10/27/22 through completion Contract Value: \$147,266 Requester: Aaron Bridgewater, Director Asset Management Facilities Services Division	Bond Funds (100%)	\$147,266

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

L. AWARD OF PROFESSIONAL/TECHNICAL SERVICES AMENDMENTS

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>NOT-TO-EXCEED AMOUNT</u>
ArborPro, Inc. (SBE)	2180005 / 4400008620 (2180005.02) Item I	Amendment to extend one year to the contract term of a formally competed professional services contract for tree inventory, tree health assessment, and preventative maintenance plan services District-wide. These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action. Contract term including this amendment: 11/01/20 through 10/31/23 Initial Contract Value: \$500,000 Amendment No. 1: Terms Revised *Amendment No. 2: Terms Revised Aggregate Contract Value: \$500,000 Requester: India Griffin, Director Maintenance & Operations Facilities Services Division	\$0*

* Current Ratification

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

L. AWARD OF PROFESSIONAL/TECHNICAL SERVICES AMENDMENTS (CONT'D)

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>NOT-TO-EXCEED AMOUNT</u>
Branded Arts, LLC (SBE)	2290011 / 4400009937 (2290011.01) (2290011.02) (2290011.03)	Amendment to increase contract capacity to develop historical interpretive plan/history walk in support of the Roosevelt HS Comprehensive Modernization Project.	\$354,600*
	Item J	These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.	
		Contract term including this amendment: 12/13/21 through 12/12/26	
		Initial Contract Value:	\$70,000
		*Amendment No. 1: (Executed 08/19/22)	\$55,500
		*Amendment No. 2: (Executed 08/23/22)	\$132,600
		*Amendment No. 3: (Executed Date: 08/23/22)	\$166,500
		Aggregate Contract Value:	\$424,600
		Requester: Aaron Bridgewater, Director Asset Management Facilities Services Division	

* Current Ratification

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

O. EXTRA SERVICES / AMENDMENTS FOR ARCHITECTURAL AND ENGINEERING CONTRACTS **\$172,496**

CONTRACT NOS. 1820025/4400006191; 1920023/4400007774

Item K

Extra Services contracts directly support the schools/teachers ability to provide a safe and healthy learning environment to students at all grade levels district-wide. In addition these services ensure legal compliance with state and local regulations.

The following listed architectural/engineering extra services fees are in accordance with the delegated authority to the Chief Procurement Officer approved by the Board of Education on May 8, 2018 (BOE#444 -17/18). The scope of work for each extra services contract is over and above that covered under the original Agreement and/or previously approved Extra Services Agreements. The cost is fair and reasonable compensation for the work required. The chart below lists the extra services categories and total amounts for the month of September.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

ATTACHMENT A
RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

December 13, 2022 (Board Report No. 053-22/23)

EXTRA SERVICES/AMENDMENT

Amount	Contract #	SAP #	Architect	School	Project Description	ES/AC Number	RFQ #	Effective Date	Expiration Date	Max Contract Value or Capacity after the Amendment	SAP Value Encumbered (Released)	Board District
\$6,484.69	1820025	4400006191	Jim Favaro Johnson Favaro, LLp	Canyon Charter ES	DOH Replacement - Recalculate and re-evaluate Package 2 and 3 with amended Geotech report	ES-23003	RFQ R-13019 Architectural Services In Support of Asset Management Branch	09/07/22	DSA Certification	\$2,812,433.61	\$2,812,453.53	4
\$166,011.06	1920023	4400007774	NAC Architecture	Taft Charter HS	Comprehensive Modernization - Provide accessibility upgrades and new elevator/walkway	ES-22107	RFQ R-13019 Architectural Services In Support of Asset Management Branch	07/28/22	DSA Certification	\$10,555,801.64	\$7,630,805.39	4

\$172,495.75

ATTACHMENT B
APPROVAL OF CONTRACTS NOT UNDER DELEGATED AUTHORITY

A. AUTHORIZATION TO AWARD A PROFESSIONAL SERVICES CONTRACT

<u>CONTRACTOR</u>	<u>IDENTIFI- CATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Christy White Associates, Inc. (SBE)	2390009 / 4400010914 Item L	Authorization to award a formally competed professional services contract to provide Proposition 51 compliance audit services to comply with state law, governing grant funding for School Facility Program.	General/ Bond Funds as permissible	\$467,839

If authorization to enter into a contract is not approved, the District will not be able to comply with Education Code 41024 and will be required to repay State funds of \$121,774,939, with interest. Moreover, the District's ability to secure future State funding used for school construction projects will be jeopardized.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract Term: 01/01/23 through 12/31/23
plus four (4) one-year options

Contract Value: \$467,839

Requester:
Karen Lee, Deputy Director
Facilities Legislation, Grants & Funding